



07/18/2024

Dear Rebecca Giblert:

We appreciate your interest in becoming a part of the Humana and/or ChoiceCare Network. We know that high-quality, affordable healthcare requires a high-quality network of professionals focused on the health of their patients.

While your paperwork is being finalized, please review the manuals and appendices for healthcare professionals located at [Humana.com/publications](https://www.humana.com/publications). That webpage also includes a resource sheet offering tips and key contacts to make doing business with Humana even easier, as well as our claim payment inquiry resolution process guide.

The Centers for Medicare & Medicaid Services (CMS) and state agencies require you to complete compliance training if your contract includes participation with a Medicare Advantage, Medicaid or dual Medicare-Medicaid network. Please visit [Humana.com/ProviderCompliance](https://www.humana.com/ProviderCompliance) to ensure compliance training timelines are met, according to your contracted line(s) of business.

The compliance training can be completed while your credentialing and participation agreement are pending approval and execution.

Humana's Care Highlight program follows the industry standard by establishing physician performance ratings related to effectiveness and efficiency. These ratings offer guidance to primary care physicians with respect to referral patterns and are used when evaluating physician participation in Humana networks. Additionally, these ratings are shared publicly through our Find-a-doctor web-based tool. For more information about how we establish physician performance ratings, methodology and use of results, go to [Humana.com/CareHighlight](https://www.humana.com/CareHighlight).

Again, thank you for your interest in becoming a part of the Humana network. If you have questions or need clarification, please contact the Humana/ChoiceCare Network Provider Relations team at 800-626-2741 (TTY:711). We are ready to assist you Monday through Friday from 8 a.m. to 5 p.m., Central time.

Sincerely,

A handwritten signature in black ink, appearing to read "Patrick S. Quinn", with a stylized flourish at the end.

Patrick S. Quinn
Director, Provider Contracting

Humana
Physician PARTICIPATION AGREEMENT
State: Washington
COVER SHEET

Creation Date: 07/18/2024

Icertis Contract Number: ICMPT_PHY_IPA_54281 MERLIN ID: 1292494

Provider Name:

Legal Name: RadiantCare Physicians, PLLC

DBA Name:

Federal Tax ID:

EIN: 912018691

Optional Information:

NPI: 1851378160

Provider Specialty: RDRO-Radiation Oncology Physician

Contract Contact Information:

Name: Rebecca Giblert

Address Line 1: 4525 3RD AVE SE STE 100

Address Line 2:

City: LACEY

State: WA Zip: 985031010

Phone: 3604128960 Ext :

Fax: 3604128970

Email: rebecca@radiantcare.com

Address for Notice

Name: RadiantCare Physicians, PLLC

Address Line 1: 4525 3RD AVE SE STE 100

Address Line 2:

City: LACEY

State: WA Zip: 985031010

Phone: 3604128960 Ext :

Fax: 3604128970

Email: rebecca@radiantcare.com

Contractor Information:

Name: Emmanuel Galeano

Address Line 1: 32125 32ND AVE S STE 250

Address Line 2: STE 250

City: FEDERAL WAY

State: WA Zip: 980019448

Phone: 4254280851 Ext

Fax:

Email: EGaleano@humana.com

PHYSICIAN PARTICIPATION AGREEMENT

This **Physician** Participation Agreement ("**Agreement**") is made and entered into by and between the party named on the signature page below (hereinafter referred to as "**Physician**") and Humana Insurance Company and Humana Health Plan, Inc. and their affiliates that underwrite or administer health plans (hereinafter referred to as "**Humana**").

1. RELATIONSHIP OF THE PARTIES

- 1.1 In performance of their respective duties and obligations hereunder, **Humana** and **Physician**, and **Physician's** respective employees and agents, are at all times acting and performing as independent contractors, and neither party, nor their respective employees and agents, shall be considered the partner, agent, servant, employee of, or joint venturer with, the other party. Unless otherwise agreed to herein, the parties acknowledge and agree that neither **Physician** nor **Humana** will be liable for the activities of the other nor the agents and employees of the other, including but not limited to, any liabilities, losses, damages, suits, actions, fines, penalties, claims or demands of any kind or nature by or on behalf of any person, party or governmental authority arising out of or in connection with: (i) any failure to perform any of the agreements, terms, covenants or conditions of this Agreement; (ii) any negligent act or omission or other misconduct; (iii) the failure to comply with any applicable laws, rules or regulations; or (iv) any accident, injury or damage to persons or property. Notwithstanding anything to the contrary contained herein, **Physician** further agrees to and hereby does indemnify, defend and hold harmless **Humana** from any and all claims, judgments, costs, liabilities, damages and expenses whatsoever, including reasonable attorneys' fees, arising from any acts or omissions in the provision by **Physician** of Health Care Services to Members. This provision shall survive termination or expiration of this Agreement.
- 1.2 The parties agree that **Humana's** affiliates whose Members receive services hereunder do not assume joint responsibility or liability between or among such affiliates for the acts or omissions of such other affiliates.

2. SERVICES TO MEMBERS

- 2.1 Subject at all times to the terms of this Agreement, **Physician** agrees to provide or arrange for professional medical service and/or related Health Care Services to individuals designated by Humana (herein referred to as "Members") with an identification card or other means of identifying them as Members covered under a self-funded or fully insured health benefits plan to which **Physician** has agreed to participate as set forth in the product participation list attachment.
- 2.2 **Physician** agrees to provide Health Care Services to individuals covered under other third party payors' (hereinafter referred to as "**Payor**" or "**Payors**") health benefits contracts (hereinafter referred to as "**Plan**" or "**Plans**") and agrees to comply with such Payors' policies and procedures. For Covered Services rendered to such individuals, **Physician** acknowledges and agrees that all rights and responsibilities arising with respect to benefits to such individuals shall be subject to the terms of the Payor Plan covering such individuals. Individuals covered under such Plans will have an identification card as a means of identifying the Payor Plan which provides coverage. Such identification cards will display the **Humana** logo and/or name.
- 2.3 For Covered Services provided to those individuals identified in Section 2.2 above, Payor will make payments for Covered Services directly to **Physician** in accordance with the terms and conditions of this Agreement and the rates set forth in the Payment Attachment applicable to the Plan type of such individual. **Physician** agrees that in no event, including, but not limited to, nonpayment by Payor, or Payor's insolvency, shall **Physician** bill, charge, collect a deposit from, seek compensation, remuneration or reimbursement from, or have any recourse against **Humana** for services provided by **Physician** to Plans' Members. This provision shall not prohibit collection by

Physician from Plans' Members for non-covered services and/or Member cost share amounts in accordance with the terms of the applicable Member Plan. Payors Plans will provide appropriate steerage mechanisms including benefit designs and/or physician directory and web site listings to ensure their covered individuals will have incentives to utilize **Physician's** services. All obligations of **Physician** under this Agreement with respect to **Humana's** Members shall equally apply to the individuals identified in Section 2.2 above.

3. THIRD PARTY BENEFICIARIES

- 3.1 Except as is otherwise specifically provided in this Agreement, the parties have not created and do not intend to create by this Agreement any rights in other parties as third party beneficiaries of this Agreement, including, without limitation, Members.

4. SCOPE OF AGREEMENT

- 4.1 This Agreement sets forth the rights, responsibilities, terms and conditions governing: (i) the status of **Physician** and **Physician's** employees, subcontractors and/or independent contractors as health care providers (hereinafter referred to as "**Participating Providers**") providing Health Care Services; and (ii) **Physician's** provision of Health Care Services (hereinafter referred to as "**Physician Services**") to Members. All terms and conditions of this Agreement which are applicable to "**Physician**" are equally applicable to each Participating Provider, unless the context requires otherwise.
- 4.2 **Physician** represents and warrants that it is authorized to negotiate terms and conditions of provider agreements, including this Agreement, and further to execute such agreements for and on behalf of itself and its Participating Providers. **Physician** further represents and warrants that Participating Providers will abide by the terms and conditions of this Agreement, including each of **Physicians** employed, subcontracted or independently contracted physicians in the event **Physician** is organized and providing services hereunder as a group practice. The parties acknowledge and agree that nothing contained in this Agreement is intended to interfere with or hinder communications between **Physician** and Members regarding the Members' medical conditions or treatment options, and **Physician** acknowledges that all patient care and related decisions are the sole responsibility of **Physician** and **Humana** does not dictate or control clinical decisions with respect to the medical care or treatment of Members.
- 4.3 **Physician** acknowledges and agrees that with respect to self-funded groups, unless otherwise provided herein, **Humana's** responsibilities hereunder are limited to provider network administration and/or claims processing.

5. SUBCONTRACTING PERFORMANCE

- 5.1 **Physician** shall provide directly, or through appropriate agreements with physicians and other licensed health care professionals and/or providers, Physician Services for Members. It is understood and agreed that **Physician** shall maintain written agreements with Participating Providers in a form comparable to, and consistent with, the terms and conditions established in this Agreement. **Physician's** downstream provider agreements shall include terms and conditions which comply with all applicable requirements for provider agreements under state and federal laws, rules and regulations. In the event of a conflict between the language of the downstream provider agreements and this Agreement, the language in this Agreement shall control.
- 5.2 **Physician** shall provide **Humana** an executed letter of agreement (in a form substantially similar to the form attached hereto as the letter of agreement attachment) for each Participating Provider who is a physician and who is subcontracted or independently contracted with **Physician** prior to the provision of services by such Participating Provider to Members. Such Participating Providers who do not execute a letter of agreement may not participate under this Agreement and may not be listed in **Humana's** provider directories.

6. ACQUISITIONS

- 6.1 This Section applies to any **Physician** acquisition through any means including, but not limited to, asset or stock purchase, merger, or consolidation (collectively, "**Acquisition**") of an ownership interest in a facility or other provider of whatever type or construction including, but not limited to, a (i) hospital, (ii) free standing ambulatory surgery center, (iii) radiology center, (iv) sleep center; or (v) physician, physician group, Independent Practice Association or Physician Hospital Organization (collectively, "**Entity**"). In the event of **Physician's** Acquisition of an Entity and such Entity has an agreement in effect with **Humana** for the provision of Health Care Services, then such Entity shall not become a participating provider with **Humana** under this Agreement but, rather, the existing separate agreement between **Humana** and such Entity will control for its duration. Furthermore, **Physician** shall not exercise any termination or nonrenewal right which may exist in the agreement between **Humana** and such Entity for a period of twelve (12) months subsequent to the effective date **Physician** acquires its ownership interest in such Entity.
- 6.2 In the event **Physician's** ownership, separate existence or entity construction (e.g., corporation, limited liability company, etc.) is altered or affected in any way as a result of acquisition, merger, consolidation or through any other means whatsoever (including, but not limited to, being merged into an affiliated entity), then this Agreement shall continue to control with respect to **Physician's** provision of Health Care Services to **Humana's** Members notwithstanding any contrary outcome which may otherwise be allowed or required by law. Furthermore, **Physician** agrees that it shall not exercise any termination or nonrenewal right which may otherwise exist in this Agreement for a period of twelve (12) months subsequent to the effective date of such transaction event.
7. **TERM AND TERMINATION**
- 7.1 This term of this Agreement shall commence on the date **Humana** inserts in this Agreement (the "**Effective Date**"). **Humana** has full authority to determine the Effective Date according to **Humana's** processing and/or credentialing requirements. The Initial Term of this Agreement shall be for Three (3) years ("Initial Term"). After the Initial Term, this Agreement shall automatically renew for subsequent one (1) year terms unless either party provides written notice of non-renewal to the other party at least ninety (90) days prior to the end of the initial term or any subsequent renewal terms.
- 7.2 Notwithstanding anything to the contrary herein, after the Initial Term, either party may terminate this Agreement without cause by providing to the other party one hundred twenty (120) days prior written notice of termination.
- 7.3 **Humana** may terminate this Agreement, or any individual Participating Provider, immediately upon written notice to **Physician**, stating the cause for such termination, in the event: (i) **Physician's**, or any individual Participating Provider's, continued participation under this Agreement may adversely affect the health, safety or welfare of any Member or brings **Humana** or its health care networks into disrepute; (ii) **Physician** or any individual Participating Provider fails to meet **Humana's** credentialing or re-credentialing criteria; (iii) **Physician** or any individual Participating Provider is excluded from participation in any federal health care program; (iv) **Physician** or any individual Participating Provider voluntarily or involuntarily seeks protection from creditors through bankruptcy proceedings or engages in or acquiesces to receivership or assignment of accounts for the benefit of creditors; or (v) **Humana** loses its authority to do business in total or as to any limited segment of business, but then only as to that segment.
- 7.4 In the event of a breach of this Agreement by either party, the non-breaching party may terminate this Agreement upon at least sixty (60) days prior written notice to the breaching party, which notice shall specify in detail the nature of the alleged breach; provided, however, that if the alleged breach is susceptible to cure, the breaching party shall have thirty (30) days from the date of receipt of notice of termination to cure such breach, and if such breach is cured, then the notice of termination shall be void of and of no effect. If the breach is not cured within the thirty (30) day period, then the date of termination shall be that date set forth in the notice of termination. Notwithstanding the foregoing, any breach related to credentialing or re-credentialing, quality assurance issues or alleged breach regarding termination by **Humana** in the event that **Humana** determines that

continued participation under this Agreement may affect adversely the health, safety or welfare of any Member or bring **Humana** or its health care networks into disrepute, shall not be subject to cure and shall be cause for immediate termination upon written notice to **Physician**.

- 7.5 **Physician** agrees that the notice of termination or expiration of this Agreement shall not relieve **Physician's** obligation to provide or arrange for the provision of Physician Services through the effective date of termination or expiration of this Agreement.
- 7.6 **Physician** agrees that **Humana** may terminate **Physician** or an individual Participating Provider's participation from one or more line(s) of business and/or provider network(s) covered by this Agreement by providing ninety (90) days prior written notice to **Physician**. In such event, the affected **Physician** or Participating Provider(s) shall remain participating with respect to all other line(s) of business, if any, and/or provider network(s) covered by this Agreement.

8. POLICIES AND PROCEDURES

- 8.1 Physician agrees to comply with Humana's quality assurance, quality improvement, accreditation, risk management, utilization review, utilization management, clinical trial and other administrative policies and procedures established and revised by Humana from time to time and, in addition, those policies and procedures which are set forth in Humana's Provider Manual for Physicians, Hospitals, and Other Health Care Providers, or its successor (hereinafter referred to as the "Manual"), and bulletins or other written materials that may be promulgated by Humana from time to time to supplement the Manual. The Manual and updated policies and procedures may be issued and distributed by Humana in electronic format. Paper copies may be obtained by Physician upon written request. Revisions to such policies and procedures shall become binding upon Physician ninety (90) days after such notice to Physician by mail or electronic means, or such other period of time as necessary for Humana to comply with any statutory, regulatory and/or accreditation requirements.
- 8.2 Humana shall maintain an authorization procedure for Physician to verify coverage of Members under a Humana health benefits contract.
- 8.3 Notwithstanding anything to the contrary in this Agreement or in the Member's health benefits contract, Physician shall obtain authorization from Humana prior to the provision of those services for which Humana requires prior authorization. Prior to rendering any non-emergent service, Physician is responsible for determining if such service requires prior authorization by reviewing Humana's prior authorization requirements posted on <http://www.humana.com/providers/> (or any subsequent location as may be specified in the Manual or otherwise by written notice) or by contacting Humana's customer service phone number, as indicated on Member's identification card.

9. CREDENTIALING AND PROFESSIONAL LIABILITY INSURANCE

- 9.1 Participation under this Agreement by **Physician** and Participating Providers is subject to the satisfaction of all applicable credentialing and re-credentialing standards established by **Humana**. **Physician** shall provide **Humana**, or its designee, information necessary to ensure compliance with such standards at no cost to **Humana** or its designee. **Physician** agrees to use electronic credentialing and recredentialing processes when administratively feasible. **Physician**, as applicable, and all Participating Providers providing Physician Services to **Humana** Members shall be credentialed in accordance with **Humana's** credentialing process prior to receiving participating status with **Humana**.
- 9.2 **Physician** shall maintain, at no expense to **Humana**, policies of comprehensive general liability, professional liability, and workers' compensation coverage, insuring **Physician** and **Physician's** employees and agents against any claim or claims for damages arising as a result of injury to property or person, including death, occasioned directly or indirectly in connection with the provision of Health Care Services contemplated by this Agreement and/or the maintenance of **Physician's** facilities and equipment. Upon request, **Physician** shall provide **Humana** with evidence of said

coverage. **Physician** shall within ten (10) business days following service upon **Physician**, or such other period of time as may be required by any applicable law, rule or regulation, notify **Humana** in writing of any Member lawsuit alleging malpractice involving a Member.

10. PROVISION OF MEDICAL SERVICES

- 10.1 **Physician** shall provide Members all available Health Care Services within the normal scope of and in accordance with **Physician's**: (a) licenses and certifications, and (b) privileges to provide certain Health Care Services based upon **Physician's** qualifications as determined by **Humana**. **Physician** agrees to comply with all requests for information related to **Physician's** qualifications in connection with **Humana's** determination whether to extend privileges to provide certain services and/or procedures to Members. **Physician** shall not bill, charge, seek payment or have any recourse against **Humana** or Members for any amounts related to the provision of Health Care Services for which **Humana** has notified **Physician** that privileges to perform such services have not been extended.
- 10.2 **Physician** shall maintain all office medical equipment including, but not limited to, imaging, diagnostic and/or therapeutic equipment (hereinafter referred to as "**Equipment**") in acceptable working order and condition and in accordance with the Equipment manufacturer's recommendations for scheduled service and maintenance. Such Equipment shall be located in **Physician's** office locations that promote patient and employee safety. **Physician** shall provide **Humana** or its agents with access to such Equipment for inspection and an opportunity to review all records reflecting Equipment maintenance and service history. Such Equipment shall only be operated by qualified technicians with appropriate training and required licenses and certifications.
- 10.3 Equipment owned and/or operated by **Physician** shall comply with all standards for use of such Equipment and technician qualifications established by **Humana**. **Physician** agrees to comply with all requests for information related to Equipment and **Physician's** and/or **Physician's** staff, qualifications for use of same. In the event: (i) **Physician's** Equipment fails to meet **Humana's** standards; or (ii) **Physician** declines to comply with **Humana's** standards for use of Equipment, **Physician** agrees that it will not use such Equipment while providing Health Care Services to Members and shall not bill, charge, seek payment or have any recourse against **Humana** or Members for any amounts for Health Care Services with respect to such Equipment.
- 10.4 **Humana** prohibits pass-through billing. Pass through billing occurs when the ordering physician requests and bills for a service, but the service is not performed by the ordering physician or those under their direct employ. **Physician** agrees that services related to pass-through billing will not be eligible for reimbursement from **Humana** and **Physician** shall not bill, charge, seek payment or have any recourse against **Humana** or Members for any amounts related to the provision of pass-through billing.

11. STANDARDS OF PROFESSIONAL PRACTICE

- 11.1 Health Care Services shall be made available to Members without differentiation or discrimination on the basis of type of health benefits plan, source of payment, employment status, socioeconomic status, sex, sexual preference, age, race, ethnicity, religion, national origin, health status, disability, military service, or veterans' status. **Physician** shall provide Health Care Services to Members in the same manner as provided to their other patients and in accordance with prevailing practices and standards of the profession.

12. MEDICAL RECORDS

- 12.1 **Physician** shall prepare, maintain and retain as confidential the medical records of all Members receiving Health Care Services, and Members' other personally identifiable health information received from **Humana**, in a form and for time periods required by applicable state and federal laws, licensing requirements, accreditation and reimbursement rules and regulations to which **Physician** is subject, and in accordance with accepted medical practice. **Physician** shall obtain

authorization of Members permitting **Humana** or its designee, and/or any state or federal agency as permitted by law, to obtain a copy and have access, upon reasonable request, to any medical record of Member related to Health Care Services provided by **Physician** pursuant to applicable state and federal laws. Medical records shall be provided by **Physician** to **Humana** at no cost to **Humana** or the Member. **Physician** will use best efforts to provide medical records electronically. If **Physician** utilizes a vendor to provide medical records to **Humana**, **Physician** agrees **Humana** is only obligated to pay the vendor the amount specified for medical records in this Agreement and further agrees to require its vendor to accept that amount as payment in full. Any expense for Medical Records in excess of the fees outlined in this Agreement shall be the responsibility of the **Physician**. Upon the written request of **Humana** and unless applicable law requires otherwise, **Physician** shall provide an agreed upon, electronic, automated means, at no cost, for **Humana** or its designee to access Member clinical information including, but not limited to, medical records for all **Humana** health plan functions including but not limited to case management, utilization management, claims review and audit, and claims adjudication.

- 12.2 **Physician** and **Humana** agree, and **Humana** will require its designee to agree, to maintain the confidentiality of information maintained in the medical records of Members, and information obtained from **Humana** through the verification of Member eligibility, as required by law. This **Section 12** shall survive expiration or termination of this Agreement, regardless of the cause.

13. GRIEVANCE AND APPEALS PROCESS/BINDING ARBITRATION

- 13.1 **Grievance and Appeals; Internal Administrative Review.** **Physician** shall cooperate and participate with **Humana** in grievance and appeals procedures to resolve disputes that may arise between **Humana** and its Members. **Physician** and **Humana** further agree that in the event they are unable to resolve disputes that may arise with respect to this Agreement, **Physician** will first exhaust any internal **Humana** administrative review or appeal procedures prior to submitting any matters to binding arbitration. For those disputes that are subject to the Medicare appeal process, **Physician** and **Humana** agree that those disputes will be resolved in accordance with the Medicare appeal process.
- 13.2 **Agreement to Arbitrate.** The parties agree that any dispute arising out of their business relationship which cannot be settled by mutual agreement shall be submitted to final and binding arbitration under the Healthcare Payor Provider Arbitration Rules of the American Arbitration Association ("AAA"), including disputes concerning the scope, validity or applicability of this agreement to arbitrate ("**Arbitration Agreement**"). The parties agree that this Arbitration Agreement is subject to, and shall be interpreted in accordance with, the Federal Arbitration Act, 9 U.S.C. §§ 1-16. No claim or allegation shall be excepted from this Arbitration Agreement, including alleged breaches of the Agreement, alleged violations of state or federal statutes or regulations, tort or other common law claims, and claims of any kind that a party to the Agreement has conspired or coordinated with, or aided and abetted, one or more third parties in violation of law. Without limiting the foregoing, this Arbitration Agreement requires arbitration of disputes involving antitrust, racketeering and similar claims. This Arbitration Agreement supersedes any prior arbitration agreement between the parties. The parties agree to arbitrate disputes arising from the parties' business relationship prior to the effective date of the Agreement under the terms of this arbitration provision. This Arbitration Agreement, however, does not revive any claims that were barred by the terms of prior contracts, by applicable statutes of limitations or otherwise.
- 13.3 **Arbitration Process.** The arbitration shall be conducted by one neutral arbitrator selected by the parties from the AAA National Healthcare Panel of arbitrators. The arbitrator shall have prior professional, business or academic experience in health care, managed care or health insurance matters. In the event of an arbitration of antitrust claims, the arbitrator shall have prior professional, business or academic experience in antitrust matters. The arbitration shall be conducted in a location selected by mutual agreement or, failing agreement, at a location selected by the AAA that is no more than fifty (50) miles from **Physician's** place of business. The cost of any arbitration proceeding(s) hereunder shall be borne equally by the parties. With respect to any arbitration

proceeding between **Humana** and **Physician** whereby **Physician** practices individually or in a physician group of less than six (6) physicians, **Humana** agrees that it shall refund any applicable filing fees or arbitrators' fees paid by such **Physician** in the event that **Physician** is the prevailing party with respect to such arbitration proceeding; provided, however, that this paragraph shall not apply with respect to any arbitration proceeding in which **Physician** purports to represent physicians outside his or her physician group. Each party shall be responsible for its own attorneys' fees and such other costs and expenses incurred related to the proceedings, except to the extent the applicable substantive law specifically provides otherwise.

- 13.4 **Joinder; Class Litigation.** Any arbitration under this Arbitration Agreement shall be solely between **Humana** and **Physician**, shall not be joined with another lawsuit, claim, dispute or arbitration commenced by any other person, and may not be maintained on behalf of any purported class.
- 13.5 **Expense of Compelling Arbitration.** If either party commences a judicial proceeding asserting claims subject to this Arbitration Agreement or refuses to participate in an arbitration commenced by the other party, and the other party obtains a judicial order compelling arbitration of such claims, the party that commenced the judicial proceeding or refused to participate in an arbitration in violation of this Arbitration Agreement shall pay the other party's costs incurred in obtaining an order compelling arbitration, including the other party's reasonable attorneys' fees.
- 13.6 **Judgment on the Decision and Award.** Judgment upon the decision and award rendered by an arbitrator under this Arbitration Agreement may be entered in any court having jurisdiction thereof.

14. USE OF PHYSICIAN'S NAME

- 14.1 **Humana** may include the following information in any and all marketing and administrative materials published or distributed in any medium: **Physician's** name, telephone number, address, office hours, type of practice or specialty, hospital affiliation, Internet web-site address, and the names of Participating Providers, including physicians providing care at **Physician's** office, and hospital affiliation, board certification, and other education and training history, if applicable, of Participating Providers. **Humana** will provide **Physician** with access to such information or copies of such administrative or marketing materials upon request.
- 14.2 **Physician** may advertise or utilize marketing materials, logos, trade names, service marks, or other materials created or owned by **Humana** after obtaining **Humana's** written consent. **Physician** shall not acquire any right or title in or to such materials as a result of such permissive use.
- 14.3 **Physician** agrees to allow **Humana** to distribute a public announcement of **Physician's** affiliation with **Humana**.

15. PAYMENT

- 15.1 **Physician** shall accept payment from **Humana** for those Health Care Services for which benefits are payable under a Member's health benefits contract (hereinafter referred to as "**Covered Services**") provided to Member in accordance with the reimbursement terms in the Payment Attachment. **Physician** shall collect directly from Member any co-payment, coinsurance, or other Member cost share amounts (hereinafter referred to as "**Copayments**") applicable to the Covered Services provided and shall not waive, discount or rebate any such Copayments. Payments made in accordance with the Payment Attachment less the Copayments owed by Members pursuant to their health benefits contracts shall be accepted by **Physician** as payment in full from **Humana** for all Covered Services. This provision shall not prohibit collection by **Physician** from Member for any Health Care Services not covered under the terms of the applicable Member health benefits contract. A reduction in payment as a result of claims policies and/or processing procedures is not an indication that the service provided is a non-covered service.

- 15.2 **Physician** agrees that payment may not be made by **Humana** for Health Care Services rendered to Members which are determined by **Humana** not to be Medically Necessary. “**Medically Necessary**” (or “**Medical Necessity**”), unless otherwise defined in the Member’s health benefit contract or by applicable law, shall mean Health Care Services that a physician, exercising prudent clinical judgment, would provide to a patient for the purpose of preventing, evaluating, diagnosing or treating an illness, injury, disease or its symptoms, and that are (a) in accordance with generally accepted standards of medical practice; (b) clinically appropriate, in terms of type, frequency, extent, site and duration, and considered effective for the patient’s illness, injury or disease; and (c) not primarily for the convenience of the patient, physician, or other health care provider, and not more costly than an alternative service or sequence of services at least as likely to produce equivalent therapeutic or diagnostic results as to the diagnosis or treatment of that patient’s illness, injury or disease. For these purposes, “generally accepted standards of medical practice” means standards that are based on credible scientific evidence published in peer-reviewed medical literature generally recognized by the relevant medical community, physician specialty society recommendations and the views of physicians practicing in relevant clinical areas and any other relevant factors. **Physician** agrees that in the event of a denial of payment for Health Care Services rendered to Members determined not to be Medically Necessary by **Humana**, that **Physician** shall not bill, charge, seek payment or have any recourse against Member for such services. Notwithstanding the immediately preceding sentence: a) **Physician** may bill a Member who is enrolled in a Commercial plan for services determined not to be Medically Necessary only if **Physician** provides the Member with advance written notice that: (i) identifies the proposed services, (ii) informs the Member that such services may be deemed by Humana to be not Medically Necessary, and (iii) provides an estimate of the cost to the Member for such services and the Member agrees in writing in advance of receiving such services to assume financial responsibility for such services; and b) **Physician** may bill a Member who is enrolled in a Medicare Advantage plan for services determined not to be Medically Necessary only if either: (i) the Member’s plan’s evidence of coverage states the specific service is never covered; or (ii) before providing the service: A) **Physician** requests an advance coverage determination (“ACD”); B) Humana’s ACD determination is that the service is non-covered; and C) Member, nevertheless, agrees to receive the service and be responsible for payment of it; and, after providing the service: D) Physician submits a claim to Humana with a charge for that service reported as required by Humana policy.
- 15.3 **Physician** agrees that **Humana** may recover overpayments made to **Physician** by **Humana** by offsetting such amounts from later payments to **Physician**, including, without limitation, making retroactive adjustments to payments to **Physician** for errors and omissions relating to data entry errors and incorrectly submitted claims or incorrectly applied discounts. **Humana** shall provide **Physician** thirty (30) days advance written notice of **Humana’s** intent to offset such amounts prior to deduction of any monies due. If **Physician** does not refund said monies or request review of the overpayments described in the notice within thirty (30) days following receipt of notice from **Humana**, **Humana** may without further notice to **Physician** deduct such amounts from later payments to **Physician**. **Humana** may make retroactive adjustments to payments for a period not to exceed eighteen (18) months from original date of payment or such other period as may be required by applicable law.
- 15.4 In the event **Humana** has access to **Physician’s**, or a Participating Provider’s, services through one or more other agreements or arrangements in addition to this Agreement, **Humana** will determine under which agreement or arrangement payment for Covered Services will be made.
- 15.5 Nothing contained in this Agreement is intended by **Humana** to be a financial incentive or payment that directly or indirectly acts as an inducement for **Physician** to limit Medically Necessary services.
- 15.6 Notwithstanding any other reimbursement terms specified in this Agreement, for all Covered Services rendered to Medicare Advantage Members (including but not limited to Members enrolled in Medicare-Medicaid alignment plans or their equivalent) the reimbursement for which under this Agreement is determined in whole or in part by a Medicare reimbursement methodology, the final payment amount to **Physician** as determined under this Agreement shall be reduced in the same

manner as the reduction in the final payment amount that CMS is applying to provider payments in Medicare Parts A and/or B pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985, as amended by the Budget Control Act of 2011, or any successor legislation ("Sequestration"). This provision is effective April 1, 2013 and shall apply for the duration of the time in which Sequestration reductions apply to provider payments under Medicare Parts A and/or B.

16. SUBMISSION OF CLAIMS

- 16.1 **Physician** shall submit all claims and encounters to **Humana** or its designee, as applicable, using the Health Insurance Portability and Accountability Act of 1996 ("HIPAA") compliant 837 electronic format, or a CMS 1500 paper format and/or UB-04, or their successors. Claims and encounters will utilize HIPAA compliant Code Sets for all coded values. Claims shall include the **Physician's** NPI and the valid taxonomy code that most accurately describes the Health Care Services reported on the claim. Claims shall be submitted within one hundred eighty (180) days from the later of: (i) the date of service; or (ii) the date of **Physician's** receipt of the explanation of benefits from the primary payor when **Humana** is the secondary payor; provided, however, all claims under self-insured plans must be submitted within ninety (90) days of the date of service. **Humana** may, in its sole discretion, deny payment for any claim(s) received by **Humana** after the later of the dates specified above. **Physician** acknowledges and agrees that Members shall not be responsible for any payments to **Physician** except for applicable Copayments and non-covered services provided to such Members.
- 16.2 **Humana** will process **Physician** claims which are accurate and complete in accordance with **Humana's** normal claims processing procedures and applicable state and/or federal laws, rules and regulations with respect to the timeliness of claims processing. Such claims processing procedures and edits may include, without limitation, automated systems applications which identify, analyze and compare the amounts claimed for payment with the diagnosis codes and which analyze the relationships among the billing codes used to represent the Health Care Services provided to Members. These automated systems may result in an adjustment of the payment to the **Physician** for the Health Care Services or in a request, prior to payment, for the submission for review of medical records that relate to the claim. A reduction in payment as a result of claims policies and/or processing procedures is not an indication that the service provided is a non-covered service. In no event may **Physician** bill a Member for any amount adjusted in payment.
- 16.3 Unless applicable law mandates submission may be in paper format, **Physician** shall submit all claims, encounters, and clinical data to **Humana** by electronic means available and accepted as industry standard, which may include claims clearinghouses or electronic data interface companies used by **Humana**. **Physician** acknowledges that **Humana** may market certain products that will require electronic submission of claims and clinical data in order for **Physician** to participate. **Physician** shall notify **Humana** when they have completed their transition to Electronic Medical Records and agrees to provide information on the status to **Humana** upon request. Unless applicable law mandates submission may be in paper format, **Physician** shall submit to **Humana** all **Humana** required clinical data (including, but not limited to, laboratory data) by available electronic means within thirty (30) days of the date of service or within the time specified by applicable law.

17. COORDINATION OF BENEFITS

- 17.1 When a Member has coverage, other than with **Humana**, which requires or permits coordination of benefits from a third party payor in addition to **Humana**, **Humana** will coordinate its benefits with such other payor(s). In all cases, **Humana** will coordinate benefits payments in accordance with applicable laws and regulations and in accordance with the terms of its health benefits contracts. When permitted to do so by such laws and regulations and by its health benefits contracts, **Humana** will pay the lesser of: (i) the amount due under this Agreement; (ii) the amount due under this Agreement less the amount payable or to be paid by the other payor(s); or (iii) the difference between the primary Payor's allowed amount and the amount paid by the other payor(s). In no

event, however, will **Humana**, when its plan is a secondary payor, pay an amount, which, when combined with payments from the other payor(s), exceeds the rates set out in this Agreement; provided, however, if Medicare is the primary payer, **Humana** will, to the extent required by applicable law, regulation or Centers for Medicare and Medicaid Services (“**CMS**”) Office of Inspector General (“**OIG**”) guidance, pay **Physician** an amount up to the amount **Humana** would have paid, if it had been primary, toward any applicable unpaid Medicare deductible or coinsurance.

18. NO LIABILITY TO MEMBER FOR PAYMENT

- 18.1 **Physician** agrees that in no event, including, but not limited to, nonpayment by **Humana**, **Humana's** insolvency or breach of this Agreement, shall **Physician** or any Participating Provider bill, charge, collect a deposit from, seek compensation, remuneration or reimbursement from, or have any recourse against Members or persons other than **Humana** (or the payor issuing the health benefits contract administered by **Humana**) for Health Care Services provided by **Physician**. This provision shall not prohibit collection by **Physician** from Member for any non-covered service and/or Copayments in accordance with the terms of the applicable Member health benefits contract.
- 18.2 **Physician** further agrees that: (i) this provision shall survive the expiration or termination of this Agreement regardless of the cause giving rise to expiration or termination and shall be construed to be for the benefit of the Member; (ii) this provision supersedes any oral or written contrary agreement now existing or hereafter entered into between **Physician** and Member or persons acting on their behalf; and (iii) this provision shall apply to all employees, agents, trustees, assignees, subcontractors, and independent contractors of **Physician**, and **Physician** shall obtain from such persons specific agreement to this provision.
- 18.3 Any modification to this **Section 18** shall not become effective unless approved by the Commissioner of Insurance, in the event such approval is required by applicable state law or regulation, or such changes are deemed approved in accordance with state law or regulation.

19. ACCESS TO INFORMATION

- 19.1 **Physician** agrees that **Humana** or its designee, or any state or federal regulatory agency as required by law, shall have reasonable access and an opportunity to examine **Physician's** financial and administrative records as they relate to Health Care Services provided to Members during normal business hours, on at least **seventy-two (72) hours** advance notice, or such shorter notice as may be imposed on **Humana** by a federal or state regulatory agency or accreditation organization.

20. NEW PRODUCT INTRODUCTION

- 20.1 From time to time during the term of this Agreement, **Humana** may develop or implement new products. Should **Humana** offer participation in any such new product to **Physician**, **Physician** shall be provided with ninety (90) days' written notice prior to the **implementation** of such new product. If **Physician** does not object in writing to its participation in such new product within such ninety (90) day notice period, **Physician** shall be deemed to have accepted participation in the new product. In the event **Physician** objects to its participation in a new product, the parties shall confer in good faith to reach agreement on the terms of **Physician's** participation. If agreement on such new product cannot be reached, such new product shall not apply to this Agreement. **Humana** may in its discretion, establish, develop, manage and market provider networks in which **Physician** may not be selected to participate.

21. ASSIGNMENT

- 21.1 The assignment by **Physician** of this Agreement or any interest hereunder shall require the prior written consent of **Humana**, which may be granted or withheld in **Humana's** sole discretion. Any attempt by **Physician** to assign this Agreement or any interest hereunder without complying with the terms of this section shall be void and of no effect, and **Humana**, at its option, may elect to terminate this Agreement upon thirty (30) days' written notice to **Physician**, without any further

liability or obligation to **Physician**. Such right of termination shall be in addition to and not a limitation of any and all other remedies that may be available to **Humana** at law or in equity in connection with such impermissible assignment. **Humana** may assign this Agreement in whole or in part to any purchaser of or successor to the assets or operations of **Humana**, or any affiliate of **Humana**, provided that the assignee agrees to assume **Humana's** obligations under this Agreement. For purposes of this Agreement, the term "assignment" shall include a change of control of **Physician** by (i) consolidation or merger with or into any entity that, giving effect to any such transaction, results in the beneficial owners of the outstanding voting securities or other ownership interests of **Physician** immediately prior to such transaction owning less than thirty-three percent (33%) of such securities or interests after such transaction; (ii) sale, transfer or other disposition of all or substantially all of the assets of **Physician**; or (iii) acquisition by any entity, or group of entities acting in concert, of beneficial ownership of thirty-three percent (33%) or more of the outstanding voting securities or other ownership interests of **Physician**.

22. COMPLIANCE WITH REGULATORY REQUIREMENTS

22.1 **Physician** acknowledges, understands and agrees that this Agreement may be subject to the review and approval of state regulatory agencies with regulatory authority over the subject matter to which this Agreement may be subject. Any modification of this Agreement requested by such agencies or required by applicable law or regulations shall be incorporated herein as provided in **Section 24.10**, of this Agreement.

22.2 **Physician** and **Humana** agree to be bound by and comply with the provisions of all applicable state and/or federal laws, rules and regulations. The alleged failure by either party to comply with applicable state and/or federal laws, rules or regulations shall not be construed as allowing either party a private right of action against the other in any court, administrative or arbitration proceeding in matters in which such right is not recognized or authorized by such law or regulation. **Physician** and Participating Providers agree to procure and maintain for the term of this Agreement all license(s) and/or certification(s) as is required by applicable law and **Humana's** policies and procedures. **Physician** shall notify **Humana** immediately of any changes in licensure or certification status of **Physician** or Participating Providers. If **Physician** or any individual Participating Provider violates any of the provisions of applicable state and/or federal laws, rules and regulations, or commits any act or engages in conduct for which **Physician's** or Participating Providers' professional licenses are revoked or suspended, or otherwise is restricted by any state licensing or certification agency by which **Physician** or Participating Providers are licensed or certified, **Humana** may immediately terminate this Agreement or any individual Participating Provider.

23. DISPUTE RESOLUTION/LIMITATIONS ON PROCEEDINGS

23.1 **Physician** may contest the amount of the payment, denial or nonpayment of a claim only within a period of eighteen (18) months following the date such claim was paid, denied or not paid by the required date by **Humana**. In order to contest such payments, **Physician** shall provide to **Humana**, at a minimum, in a clear and acceptable written format, the following information: Member name and identification number, date of service, relationship of the Member to the patient, claim number, name of the provider of the services, charge amount, payment amount, the allegedly correct payment amount, difference between the amount paid and the allegedly correct payment amount, and a brief explanation of the basis for the contestation.

23.2 In the event of a determination, following either the review of the claims contestations by **Humana**, or following the arbitration proceedings described in **Section 13.2** above, that the claims in dispute, in the aggregate, were processed and paid correctly, **Physician** shall, upon request of **Humana**, reimburse **Humana** for its costs in reviewing the claims contestations and reprocessing the claims and, in the event the matter was submitted by either party for arbitration, the costs and expenses, and attorneys' fees incurred by **Humana** that are attributable to the arbitration proceeding. In the event of a determination, following either the review of the claims contestations by **Humana** or following the arbitration proceedings described in **Section 13.2** above, that the claims in dispute,

in the aggregate, were not processed and paid correctly by **Humana**, **Humana** shall, upon request of **Physician** reimburse **Physician's** costs in preparing the claims contestation submission to **Humana**, and, in the event the matter was submitted by either party for arbitration, the costs and expenses, and attorneys' fees incurred by **Physician** that are attributable to the mediation or arbitration proceeding.

24. MISCELLANEOUS PROVISIONS

- 24.1 **SEVERABILITY.** If any part of this Agreement should be determined to be invalid, unenforceable, or contrary to law, that part shall be reformed, if possible, to conform to law, and if reformation is not possible, that part shall be deleted, and the other parts of this Agreement shall remain fully effective.
- 24.2 **GOVERNING LAW.** This Agreement shall be governed by and construed in accordance with the applicable laws of the state in which Health Care Services are provided. The parties agree that applicable state and/or federal laws and/or regulations may make it necessary to include in this Agreement specific provisions relevant to the subject matter contained herein. Such state law provisions, if any, are set forth in the state law coordinating provisions attachment hereto. Such federal law provisions, if any, are set forth in the Medicare Advantage provisions attachment hereto. The parties agree to comply with any and all such provisions and in the event of a conflict between the provisions in the state law coordinating provisions attachment and/or the Medicare Advantage provisions attachment and any other provisions in this Agreement, the provisions in those attachments, as applicable, shall control. In the event that state and/or federal laws and/or regulations enacted after the Effective Date expressly require specific language be included in this Agreement, such provisions are hereby incorporated by reference without further notice by or action of the parties and such provisions shall be effective as of the effective date stated in such laws, rules or regulations.
- 24.3 **WAIVER.** The waiver, whether express or implied, of any breach of any provision of this Agreement shall not be deemed to be a waiver of any subsequent or continuing breach of the same provision. In addition, the waiver of one of the remedies available to either party in the event of a default or breach of this Agreement by the other party shall not at any time be deemed a waiver of a party's right to elect such remedy at any subsequent time if a condition of default continues or recurs.
- 24.4 **NOTICES.** Any notices, requests, demands or other communications, except notices of changes in policies and procedures pursuant to **Section 8**, required or permitted to be given under this Agreement shall be in writing and shall be deemed to have been given: (i) on the date of personal delivery; or (ii) provided such notice, request, demand or other communication is received by the party to which it is addressed in the ordinary course of delivery: (a) on the third day following deposit in the United States mail, postage prepaid or by certified mail, return receipt requested; (b) on the date of transmission by facsimile transmission; or (c) on the date following delivery to a nationally recognized overnight courier service, each addressed to the other party at the address set forth below their respective signatures to this Agreement, or to such other person or entity as either party shall designate by written notice to the other in accordance herewith. **Humana** may also provide such notices to **Physician** by electronic means to the e-mail address of **Physician** set forth on the Cover Sheet to this Agreement or to other e-mail addresses **Physician** provides to **Humana** by notice as set forth herein. Unless a notice specifically limits its scope, notice to any one party included in the term "**Physician**" or "**Humana**" shall constitute notice to all parties included in the respective terms.
- 24.5 **CONFIDENTIALITY.** **Physician** agrees that the terms of this Agreement and information regarding any dispute arising out of this Agreement are confidential, and agrees not to disclose the terms of this Agreement nor information regarding any dispute arising out of this Agreement to any third party without the express written consent of **Humana**, except pursuant to a valid court order, or when disclosure is required by a governmental agency. Notwithstanding anything to the contrary herein, the parties acknowledge and agree that **Physician** may discuss the payment methodology included herein with Members requesting such information.

- 24.6 **COUNTERPARTS, HEADINGS AND CONSTRUCTION.** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, and all of which together constitute one and the same instrument. The headings in this Agreement are for reference purposes only and shall not be considered a part of this Agreement in construing or interpreting any of its provisions. Unless the context otherwise requires, when used in this Agreement, the singular shall include the plural, the plural shall include the singular, and all nouns, pronouns and any variations thereof shall be deemed to refer to the masculine, feminine or neuter, as the identity of the person or persons may require. It is the parties' desire that if any provision of this Agreement is determined to be ambiguous, then the rule of construction that such provision is to be construed against its drafter shall not apply to the interpretation of the provision.
- 24.7 **INCORPORATION OF ATTACHMENTS.** All attachments attached hereto are incorporated herein by reference.
- 24.8 **FORCE MAJEURE.** Neither party to this Agreement shall be deemed to breach its obligations under this Agreement if that party's failure to perform under the terms of this Agreement is due to an act of God, riot, war or natural disaster.
- 24.9 **ENTIRE AGREEMENT.** This Agreement, including the attachments, addenda and amendments hereto and the documents incorporated herein, constitutes the entire agreement between **Humana** and **Physician** with respect to the subject matter hereof, and it supersedes any prior or contemporaneous agreements, oral or written, between **Humana** and **Physician**.
- 24.10 **MODIFICATION OF AGREEMENT.** This Agreement may be amended in writing as mutually agreed upon by **Physician** and **Humana**. In addition, **Humana** may amend this Agreement upon ninety (90) days' written notice to **Physician**. Failure of **Physician** to object in writing to such amendment during the ninety (90) day notice period shall constitute acceptance of such amendment by **Physician**.

Each party to this Agreement represents that it has full power and authority to enter into this Agreement and the person signing below on behalf of either party represents that they have been duly authorized to enter into this Agreement on behalf of the party they represent. This Agreement is effective as of the Effective Date of Nov 1, 2024

**Physician
AUTHORIZED SIGNATORY**

HUMANA

Legal Entity: RadiantCare Physicians, PLLC

Signature: 
Bryan Waide (Aug 27, 2024 11:35 PDT)

Provider DBA Name:

Printed Name: Bryan Waide

Signature: 
Rebecca Gilbert (Aug 27, 2024 09:38 PDT)

Title: Director of Provider Contr:

Printed Name: Rebecca Gilbert

Date: Aug 27, 2024

Title: Practice Manager

Date: Aug 27, 2024

Tax ID: 912018691

Address For Notice:

Physician:

Humana:

<u>Physician :</u>	<u>Copy to:</u>
RadiantCare Physicians, PLLC	Humana Inc
4525 3RD AVE SE STE 100	Attn: Law Department
	P.O. Box 1438
LACEY, WA, 985031010	Louisville, Kentucky 40201-1438

PRODUCT PARTICIPATION LIST

ATTACHMENT

Physician agrees to participate in the health benefits plan(s) selected below, whether self-funded or fully insured, that are offered or administered by **Humana**.

Health Benefits Plan

Medicare PPO Plans	X
Medicare Network PFFS Plans	X
Medicare HMO Plans	X

PHYSICIAN INFORMATION

ATTACHMENT

(To be provided by **Physician** prior to execution of this Agreement.)

The following information is to be listed below for **Physician** and each Participating Provider: address, phone number, fax number, tax identification number, contact person, area of specialty, office hours, and area hospitals where **Physician** and Participating Providers have admitting privileges and the corresponding hospital privilege category.

PHYSICIAN REIMBURSEMENT

ATTACHMENT

Medicare Advantage

Physician agrees to accept as payment in full from **Humana** for Covered Services rendered to Members, the **lesser** of **Physician's** billed charges or the amount specified below, less any Copayments due from Member.

Plan / Service:	Reimbursement:
Oncology Services	103% of Humana's 201-585 fee schedule
Drugs & Biologicals	103% of Humana 's 201-544 fee schedule
Laboratory & Pathology Services	75% of Humana's 005-985 fee schedule
HCPCS codes, listed on Humana's Nat'l DME, Supply & Orthotics Table 283	75% of Humana's 005-985 fee schedule
Physical Therapy, Occupational Therapy & Speech Therapy Codes: 97001 - 98943, 92506 - 92508	80% of Humana's 005-985 fee schedule
All other services	103% of Humana 's 005-985 fee schedule
Physician Extender Services Except for Drugs & Biologicals, Laboratory & Pathology services, HCPCS and Therapy codes which pay as outlined above	85% of Humana 's 005-985 fee schedule

Claims filed with an "unlisted" service or procedure code must include documentation of the service provided. The documentation must include a written description of the service and the appropriate medical reports related to the service, including the NDC number for drugs or a copy of the invoice for equipment, if applicable. Unlisted procedure codes are defined as CPT or HCPCS code descriptions that include one of the following "NOC, NEC, NOS, unlisted, not specified, miscellaneous or special report". Each claim will be reviewed manually and **Humana** will assign the allowable fee based on established fees for comparable services

National DME Supply & Orthotics Table 283

Humana may add codes to Table 283 or delete codes to Table 283 according to updates made by CMS to the range of codes within the table. These updates shall be incorporated herein by **Humana** without notice to the **Physician**, but will be available to the **Physician** upon request.

FEE SCHEDULE DESCRIPTIONS

201-544 Fee Schedule:

Humana's injectable fee schedule (201-544) uses a percentage of the CMS Average Sales Price (ASP) or other industry standard as the basis of the 201-544 fee schedule. The fee schedule also includes but is not limited to the following administration codes: 90460, 90461, 90470, 90471, 90472, 90473, and 90474. Notwithstanding anything to the contrary in the Agreement, in the event the basis for the schedule is changed from a percentage of ASP or other industry standard to another basis or methodology, then **Humana** will provide ninety (90) days advance notice to **Physician**, of the new basis. The list of codes and associated fees are reviewed and updated quarterly to reflect market pricing. These quarterly updates, if any, as well as any change in the basis may result in fees being adjusted either upward or downward. These updates shall be incorporated in the **Humana** injectable fee schedule (201-544) without notice to **Physician**, but will be made available to **Physician**, upon written request.

201-585 Humana Fee Schedule:

Humana's Oncology Drug fee schedule (201-585) is a proprietary fee schedule developed to provide specific reimbursement for oncology drugs. The list of codes and associated fees are reviewed and updated quarterly to reflect pricing fluctuations using a variety of nationally published cost sources. These quarterly updates, if any, may result in fees being adjusted either upwardly or downwardly, or codes being added or removed. The updates shall be incorporated in the **Humana's** Oncology Drug fee schedule (201-585) without notice to **Provider** but will be made available to **Provider**, upon request.

005-985 Fee Schedule:

Humana's (005-985) fee schedule is based on the Medicare Resource-Based Relative Value Scale, RBRVS, fee schedule and Medicare payment systems, for the state of Washington, locality# 99, including the site-of-service payment differential, in effect as of the effective date of this Agreement and will change thereafter to reflect the updates to the schedules made by the Centers for Medicare and Medicaid Services ("**CMS**"). Depending upon the services and/or supplies in question, "payment system(s)" as referenced in the immediately preceding sentence is inclusive of, but not limited to, Durable Medical Equipment, Prosthetics/Orthotics, and Supplies ("**DMEPOS**") Fee Schedule and Clinical Laboratory Fee Schedule, or its/their successors, as applicable.

Additionally, **Humana** will adjust the schedule to include and assign fees for services, which are not covered by RBRVS (hereinafter "**Gap Codes**"). In most cases, the Gap Codes are adjusted by **Humana** using the relative value unit ("**RVU**") multiplied by Medicare's conversion factor and geographic factor to assign the fee.

Such updates by CMS and any corresponding adjustments by Humana shall be incorporated herein without notice to the **Physician**, but will be available to the **Physician** upon request. **Humana** may make other adjustments and modifications to the fee schedule. In such cases, Humana will provide to **Physician** a ninety (90) day written notice prior to implementation of any other modifications and adjustments to the fee schedule.

PHYSICIAN EXTENDERS

Physician agrees that in the event that **Physician** employs, subcontracts or independently contracts with or uses the services of a physician extender (that is, a physician assistant, advanced registered nurse practitioner, certified nurse midwife, or such other similarly situated individual) who will be providing services to **Humana** Members under the supervision of **Physician**, **Physician** shall notify **Humana** in writing, upon execution of this Agreement and at any time during the term of this Agreement when such

physician extenders are employed, subcontracted or independently contracted with **Physician**, and the specific services that such physician extenders will be performing, prior to the provision of services to any **Humana** Member. **Physician** represents that physician extenders employed by or under contract with **Physician** will comply with the terms and condition of this Agreement, maintain professional liability coverage and are appropriately licensed as required by applicable state and federal laws, rules and regulations. **Physician** acknowledges and agrees **Humana** retains the right to approve, suspend and/or terminate participation under this Agreement of any physician extender who will be providing services to **Humana** Members.

ANCILLARY SERVICES

Physician agrees to provide only those laboratory, injectable, infusion therapies, durable medical equipment, radiology, nuclear medicine, physical therapy and other ancillary health care services which **Physician** is qualified to provide by license, certification, and state and/or federal law.

FEE SCHEDULE SAMPLES

Humana has provided a representative sample of these fee schedules to **Provider** prior to **Provider's** execution of this Agreement, and thereafter will supply a sample upon written request by **Provider**. **Provider** hereby acknowledges receipt of fee schedule sample.

SPECIFIC REFERRALS

Physician and other Participating Providers acknowledge and agree that certain referrals are required to be made to specific providers designated by **Humana**. The specific referral providers include but are not limited to:

<u>Services:</u>	<u>Vendor Entity:</u>
_____	_____
_____	_____
_____	_____

Physician and other Participating Providers further acknowledge and agree that such specific providers may be changed or added to upon written notice by **Humana** to **Physician**.

MISCELLANEOUS

Physician understands that **Humana** may market or administer products that contain variable Copayment amounts due from the Member for Covered Services based on the medical specialty of certain physicians and the unit costs or reimbursement rates provided for in provider participation agreements. **Physician** agrees to participate in such products and to bill and accept as payment in full for Covered Services rendered to Members in such products the reimbursement rates set forth above less any Copayment amounts due from the Member.

In circumstances where the Member's Copayment for a Covered Service is equal to or greater than the rate set forth herein for that service, **Physician** agrees to accept as payment in full for the service the Member's Copayment, not to exceed the rates set forth herein. Furthermore, in such cases, **Physician** agrees to refund to Member the difference, if any, between the Copayment collected from the Member and such rate.

MEDICARE ADVANTAGE PROVISIONS

ATTACHMENT

The following additional provisions ("Medicare Advantage Provisions") relate specifically to Medicare Advantage products and plans and are hereby incorporated by reference into the Agreement.

- a) **Physician** agrees to: (i) abide by all state and federal laws regarding confidentiality, privacy and disclosure of medical records or other health and enrollment information, (ii) ensure that medical information is released only in accordance with applicable state and/or federal law, or pursuant to court orders or subpoenas, (iii) maintain all Member records and information in an accurate and timely manner, and (iv) allow timely access by Members to the records and information that pertain to them.
- b) **Humana** and **Physician** agree that **Humana** will process all claims for Covered Services which are accurate and complete within thirty (30) days from the date of receipt.
- c) **Physician** agrees that in no event, including, but not limited to, nonpayment by **Humana**, **Humana's** insolvency or breach of this Agreement, shall **Physician** bill, charge, collect a deposit from, seek compensation, remuneration or reimbursement from, or have any recourse against Members or persons other than **Humana** (or the payor issuing the health benefits contract administered by **Humana**) for Covered Services provided by **Physician** for which payment is the legal obligation of **Humana**. This provision shall not prohibit collection by **Physician** from Member for any non-covered service and/or Copayments in accordance with the terms of this Agreement and the applicable Member health benefits contract. **Physician** further agrees that: (i) this provision shall survive the expiration or termination of this Agreement regardless of the cause giving rise to expiration or termination and shall be construed to be for the benefit of the Member; (ii) this provision supersedes any oral or written contrary agreement now existing or hereafter entered into between **Physician** and Member or persons acting on their behalf; and (iii) this provision shall apply to all employees, agents, trustees, assignees, subcontractors, and independent contractors of **Physician**, and **Physician** shall obtain from such persons specific agreement to this provision.
- d) **Physician's** performance of services under the Agreement shall be consistent and in compliance with **Humana's** contractual obligations under its Medicare Advantage contract(s). **Physician** agrees to cooperate with and assist **Humana** in its efforts to comply with its Medicare Advantage contract(s) and/or Medicare Advantage rules and regulations and to assist **Humana** in complying with corrective action plans necessary for **Humana** to comply with such rules and regulations.
- e) **Physician** agrees that nothing in the Agreement shall be construed as relieving **Humana** of its responsibility for performance of duties agreed to through its Medicare Advantage contracts existing now or entered into in the future with CMS.
- f) **Physician** agrees to comply with and be subject to all applicable Medicare program laws, rules and regulations, reporting requirements, and CMS instructions as implemented and amended by CMS. This includes, without limitation the rights of **Humana** and applicable, federal and state regulatory agencies including, but not limited to, HHS, the Comptroller General or their designees to evaluate, inspect and audit **Physician's** operations, books, records, and other documentation and pertinent information related to **Physician's** obligations under the Agreement, as well as all other state and federal laws, rules and regulations applicable to individuals and entities receiving federal funds. **Physician** further agrees that such rights to inspect, evaluate and audit any pertinent information for any particular contract period will exist through ten (10) years from the final date of the contract period between **Humana** and CMS or from the date of completion of any audit, whichever is later, and agrees to cooperate, assist and provide information as requested by such entities.
- g) **Physician** agrees to retain all contracts, books, documents, papers and other records related to the provision of services to Medicare Advantage Members and/or as related to **Physician's** obligations under the Agreement for a period of not less than ten (10) years from: (i) each successive December 31; or (ii) the end of the contract period between **Humana** and CMS; or (iii) from the date of completion of any audit, whichever is later.

- h) **Physician** agrees in the event certain identified activity(ies) have been delegated to **Physician** under the Agreement, any sub-delegation of the noted activity(ies) by **Physician** requires the prior written approval of **Humana**. Notwithstanding anything to the contrary in the Agreement, **Humana** will monitor **Physician's** performance of any delegated activity(ies) on an ongoing basis and hereby retains the right to modify, suspend or revoke such delegated activity(ies) in the event **Humana** and/or CMS determines, in their discretion, that **Physician** is not meeting or has failed to meet its obligations under the Agreement related to such delegated activity(ies). In the event that **Humana** has delegated all or any part of the claims payment process to **Physician** under the Agreement, **Physician** shall comply with all prompt payment requirements to which **Humana** is subject. **Humana** agrees that it shall review the credentials of **Physician** or, if **Humana** has delegated the credentialing process to **Physician**, **Humana** shall review and approve **Physician's** credentialing process and audit it on an ongoing basis.
- i) **Physician** agrees to comply with **Humana's** policies and procedures and complete general compliance training and fraud, waste, and abuse training as required by CMS.
- j) **Physician** agrees to maintain full participation status in the federal Medicare program. This also includes all of **Physician's** employees, subcontractors, and/or independent contractors who will provide services, including, without limitation, health care, utilization review, medical social work, and/or administrative services under the Agreement.
- k) **Physician** agrees that payment from **Humana** for services rendered to **Humana's** Medicare Advantage Members is derived, in whole or in part, from federal funds received by **Humana** from CMS.
- l) **Physician** agrees to disclose to **Humana**, upon request and within thirty (30) days or such lesser period of time required for **Humana** to comply with all applicable state and/or federal laws, all of the terms and conditions of any payment arrangement that constitutes a "physician incentive plan" as defined by CMS and/or any federal law or regulation. Such disclosure should identify, at a minimum, whether services not furnished by the physician/provider are included, the type of incentive plan including the amount, identified as a percentage, of any withhold or bonus, the amount and type of any stop-loss coverage provided for or required of the physician/provider, and the patient panel size broken down by total group or individual physician/provider panel size, and by the type of insurance coverage (i.e., Commercial HMO, Medicare Advantage HMO, Medicare PPO, and Medicaid HMO).
- m) **Physician** agrees that in the event of **Humana's** insolvency or termination of **Humana's** contract with CMS, benefits to Members will continue through the period for which premium has been paid and benefits to Members confined in an inpatient facility will continue until their discharge.
- n) **Physician** agrees to provide or arrange for continued treatment, including, but not limited to, medication therapy, to Medicare Advantage Members upon expiration or termination of the Agreement. In accordance with all applicable state and federal laws, rules and/or regulations, treatment must continue until the Member: (i) has been evaluated by a new participating provider who has had a reasonable opportunity to review or modify the Medicare Advantage Member's course of treatment, or until **Humana** has made arrangements for substitute care for the Medicare Advantage Member; and (ii) until the date of discharge for Medicare Advantage Members hospitalized on the effective date of termination or expiration of the Agreement. **Physician** agrees to accept as payment in full from **Humana** for Covered Services rendered to **Humana's** Medicare Advantage Members, the rates set forth in the **Physician** Reimbursement Attachment which are applicable to such Member.
- o) **Physician** agrees to cooperate with the activities and/or requests of any independent quality review and improvement organization utilized by and/or under contract with **Humana** as related to the provision of services to Medicare Advantage Members.
- p) **Physician** agrees to cooperate with **Humana's** health risk assessment program.
- q) **Physician** agrees to provide to **Humana** accurate and complete information regarding the provision of Covered Services by **Physician** to Members ("Data") on a complete CMS 1500 or UB 04 form, or their respective successor forms as may be required by CMS, or such other form as may be required by law when submitting claims and encounters in an electronic format, or such other format as is mutually agreed upon by both parties. The Data shall be provided to **Humana** on or before the last day of each month for encounters occurring in the immediately preceding

month, or such lesser period of time as may be required in the Agreement, or as is otherwise agreed upon by the parties in writing. The submission of the Data to **Humana** and/or CMS shall include a certification from **Physician** that the Data is accurate, complete and truthful. In the event the Data is not submitted to **Humana** by the date and in the form specified above, **Humana** may, in its sole option, withhold payment otherwise required to be made under the terms of the Agreement until the Data is submitted to **Humana**.

- r) **Physician** agrees not to collect or attempt to collect copayments, coinsurance, deductibles or other cost-share amounts from any **Humana** Medicare Advantage Member who has been designated as a Qualified Medicare Beneficiary ("QMB") by CMS.
- s) **Physician** agrees to require its employed and contracted health care providers and health care professionals providing services under the Agreement to comply with the terms and conditions of the Agreement. **Physician** must maintain written agreements with any contracted health care providers and health care professionals, as applicable, that include terms and conditions that comply with the Medicare Advantage Provisions and all applicable requirements for provider agreements under state and federal laws, rules and regulations including, without limitation, the Medicare Advantage rules and regulations to which **Humana** is subject. In the event of a conflict between the language of such downstream agreements and the Agreement, the language in the Agreement shall control.
- t) With respect to any Members who are eligible for both Medicare and Medicaid, **Physician** agrees that such Members will not be held liable for Medicare Part A and Medicare Part B cost sharing when the State is responsible for paying such amounts. Further, with respect to such Members, **Physician** agrees to: (i) accept the payment amount from **Humana** as payment in full, or (ii) bill the appropriate State source.
- u) **Physician** certifies that **Physician** and its principals, employees, agents and subcontractors have not been excluded, suspended, or debarred from participation in any federally-funded health care program. **Physician** shall review the Office of Inspector General and General Services Administration exclusion files and the CMS Preclusion List and verify on a monthly basis (or as often as required by CMS) that the persons it employs or contracts for the provision of services under the Agreement are in good standing. **Physician** shall notify **Humana** immediately upon becoming aware that **Physician** or its principals, employees, agents, or subcontractors have been excluded, suspended, or debarred from participation in any federally-funded health care program.
- v) After the expiration of the sixty (60) day time period specified in 42 C.F.R. 422.222, or successor regulation, any individual or entity on the CMS Preclusion List shall: (i) no longer be eligible for payment from **Humana** and shall be prohibited from pursuing payment from the Member, and (ii) hold financial responsibility for services, items, and drugs that are furnished, ordered, or prescribed.

HMO PROVISIONS

ATTACHMENT

The following provisions apply to HMO products and plans, as applicable.

I. Services to Members. In the event **Physician** provides a Member a non-covered service or refers a Member to an out-of-network provider without pre-authorization from **Humana**, **Physician** shall, prior to the provision of such non-covered service or out-of-network referral, inform the Member: (i) of the service(s) to be provided or referral(s) to be made; (ii) that **Humana** will not pay or be liable financially for such non-covered service(s) or out-of-network referral(s); and (iii) that Member will be responsible financially for non-covered service(s) and/or out-of-network referral(s) that are requested by the Member.

II. Continuity of Care. Subject to and in accordance with all applicable state and/or federal laws, rules and/or regulations, treatment following termination or expiration of this Agreement must continue until the Member: (i) has been evaluated by a new participating provider who has had a reasonable opportunity to review or modify the Member's course of treatment, or until **Humana** has made arrangements for substitute care for the Member; and (ii) until the date of discharge for Members hospitalized on the effective date of termination or expiration of this Agreement. **Physician** agrees to accept as payment in full from **Humana** for Covered Services rendered to such Members, the rates set forth in the Payment Attachment, less any Copayments due from such Members.

Notwithstanding the foregoing, if upon notice from **Physician** or a Member that Member is in a continuation of care situation as noted above or in accordance with applicable law and **Humana** does not use due diligence to make alternative care available to the Member within ninety (90) days after receipt of such notice, then **Humana** shall pay to **Physician** for continuity of care services the standard rates paid to non-participating physicians for that geographical area. The preceding sentence shall not apply if other participating physicians, physician groups or physician organizations are not available to replace the terminating **Physician** due to: (i) geographic or travel-time barriers; or (ii) contractual provisions between the terminating **Physician** and a facility at which the Member receives care that limits or precludes other participating physicians, physician groups or physician organizations from rendering replacement services to Members (for example, an exclusive contract is in place between the terminating **Physician** and a facility where the Member receives services).

III. Medical Records. Upon request from **Humana** or a Member, **Physician** shall transfer a complete copy of the medical records of any Member transferred to another physician and/or facility for any reason, including termination or expiration of this Agreement. The copy and transfer of medical records shall be made at no cost to **Humana** or the Member and shall be made within a reasonable time following the request, but in no event more than five (5) business days, except in cases of emergency where the transfer shall be immediate. **Physician** agrees that such timely transfer of medical records is necessary to provide for the continuity of care for Members. **Physician** agrees to pay court costs and/or legal fees incurred by **Humana** or the Member to enforce the terms of this provision.

IV. Equal Access. **Physician** agrees to accept **Humana** Members as patients within the normal scope of **Physician's** medical practice. If, due to overcapacity, **Physician** closes his/her practice to new patients, such closure will apply to all prospective patients without discrimination or regard to payor or source of payment for services. Should **Physician** subsequently reopen his/her practice to new patients, **Physician** agrees to accept **Humana** Members seeking assignment and/or referral to **Physician's** practice to the same extent and in the same manner as all other non-**Humana** patients seeking **Physician's** services.

V. Physician Responsibilities.

A. Services

Physician agrees to be responsible twenty-four (24) hours a day, seven (7) days a week for providing Covered Services for Members including, but not limited to, prescribing, directing and monitoring all urgent and emergency care for Members.

Physician agrees to provide **Humana** upon request a written description of its arrangements for emergency and urgent care and service coverage in the event of unavailability due to vacation, illness, and after regular office hours. **Physician** shall ensure that all physicians providing such coverage are contracted and credentialed physicians with **Humana**. **Physician** will ensure that all physicians providing such coverage render services under the same terms and conditions and in compliance with all provisions of this Agreement. Compensation to physicians for "on call" coverage will be the responsibility of **Physician**.

In the event that emergency or urgent care services are needed by a Member outside the service area, **Physician** agrees to monitor and authorize the out-of-area care to provide direct care as soon as the Member is able to return to the service area for treatment without medically harmful or injurious consequences.

B. Specific Referrals

Except in the case of a medical emergency, **Physician** agrees to use its best efforts to admit, refer, and cooperate with the transfer of Members for Covered Services only to providers designated, specifically approved by or under contract with **Humana**.

In addition, **Physician** acknowledges and agrees that certain Members may have health benefits contracts that limit coverage to certain types of participating providers. For such Members, referrals are required to be made to specific providers designated by **Humana**.

C. Disease/Case Management Programs

Physician agrees to participate in **Humana's** disease/case management programs as they are developed and implemented.

D. Humana First

Physician agrees to participate in **Humana's** twenty-four (24) hours nurse call program, HumanaFirst, or any such successor program.

E. Transplant Programs

Upon request by **Humana**, **Physician** agrees to cooperate with and participate in **Humana's** organ and tissue transplant programs as they are developed and implemented.

F. Health Improvement Studies

Physician agrees to participate in **Humana's** health improvement studies as they are developed and implemented.

G. Quality Improvement Activities

Physician agrees to cooperate with **Humana's** quality improvement activities and, upon request by **Humana**, to participate in **Humana's** quality improvement activities as they are developed and implemented.